

House File 940

H-1184

1 Amend House File 940 as follows:

2 1. Page 1, before line 1 by inserting:

3 <DIVISION I
4 PROBATE LAW — NAMED BENEFICIARIES>

5 2. Page 3, after line 21 by inserting:

6 <DIVISION ____
7 PREMARITAL AGREEMENTS — AMENDMENTS

8 Sec. _____. Section 596.5, subsection 1, Code 2025, is amended
9 by adding the following new paragraph:

10 NEW PARAGRAPH. *0g.* Any limitations on the ability of the
11 parties to amend the agreement whether prior to after the
12 solemnization of the marriage except that any amendment must be
13 in writing and signed by both parties.

14 Sec. _____. NEW SECTION. **596.6A Amendment.**

15 Notwithstanding section 597.2, a premarital agreement may
16 be amended after marriage only by a written agreement signed
17 by both spouses which satisfies any additional criteria
18 or limitations of an amendment set forth in the premarital
19 agreement.

20 Sec. _____. Section 596.7, unnumbered paragraph 1, Code 2025,
21 is amended to read as follows:

22 After marriage, a premarital agreement or amendment may be
23 revoked only as follows:

24 Sec. _____. Section 596.7, subsection 2, unnumbered paragraph
25 1, Code 2025, is amended to read as follows:

26 To revoke a premarital agreement or amendment without the
27 consent of the other spouse, the person seeking revocation must
28 prove one or more of the following:

29 Sec. _____. Section 596.8, Code 2025, is amended to read as
30 follows:

31 **596.8 Enforcement.**

32 1. A premarital agreement or amendment is not enforceable
33 if the person against whom enforcement is sought proves any of
34 the following:

35 a. The person did not execute the agreement or amendment

1 voluntarily.

2 **b.** The agreement or amendment was unconscionable when it
3 was executed.

4 **c.** Before the execution of the agreement or amendment the
5 person was not provided a fair and reasonable disclosure of
6 the property or financial obligations of the other spouse; and
7 the person did not have, or reasonably could not have had, an
8 adequate knowledge of the property or financial obligations of
9 the other spouse.

10 2. If a provision of the agreement or amendment or the
11 application of the provision to a party is found by the court
12 to be unenforceable, the provision shall be severed from the
13 remainder of the agreement and shall not affect the provisions,
14 or application, of the agreement which can be given effect
15 without the unenforceable provision.

16 Sec. _____. Section 596.9, Code 2025, is amended to read as
17 follows:

18 **596.9 Unconscionability.**

19 In any action under [this chapter](#) to revoke or enforce
20 a premarital agreement or amendment, the issue of
21 unconscionability of a premarital agreement or amendment shall
22 be decided by the court as a matter of law.

23 Sec. _____. APPLICABILITY. This division of this Act applies
24 to proceedings concerning premarital agreement amendments
25 commenced on or after July 1, 2025.>

26 3. Title page, by striking lines 1 through 3 and inserting
27 <An Act relating to civil law, including providing notice
28 to named beneficiaries in probate law, a process for named
29 beneficiaries to obtain ownership of property held by others
30 in probate law, and authorizing spouses to amend premarital
31 agreements, and including applicability provisions.>

32 4. By renumbering as necessary.

GUSTOFF of Polk